



President declares conflict with cartels

Some in Congress question justification for lethal strikes on civilians

BY NOAH ROBERTSON, ALEX HORTON, ELLEN NAKASHIMA AND KAREN DEYOUNG

President Donald Trump has determined the United States is in “armed conflict” with drug cartels that are distributing narcotics in the U.S., according to a notification to Capitol Hill that seeks to give legal cover for taking lethal action against traffickers following multiple strikes against what the administration has claimed are Venezuelan boats in international waters.

Some lawmakers and experts have said the notification is a dubious legal justification for what have been unlawful military strikes on alleged civilian criminals in the Western Hemisphere, a far cry from combatants engaged in direct battle with American forces.

Trump directed the Pentagon to conduct operations pursuant to the law of armed conflict after he “determined that the United States is in a non-international armed conflict with these designated terrorist organizations” that have helped kill U.S. citizens through drug trafficking, according to a sensitive notice transmitted to Senate leadership and congressional committees this week and reviewed by The Washington Post.

“The United States has now reached a critical point where we must use force in self-defense and defense of others against the ongoing attacks by these designated terrorist organizations,” the notice reads.

The administration has de-
SEE CARTELS ON A6



BRENDAN SMIALOWSKI/AFP/GETTY IMAGES

Visitors enjoy the Smithsonian National Zoo in Washington on Wednesday during the government shutdown. The Smithsonian said it has enough prior-year funding to keep all museums and facilities open to the public “at least through Monday.”

Drug-pricing deal also delivers victory for Pfizer

BY PETER WHORISKEY AND DANIEL GILBERT

President Donald Trump celebrated a long-promised victory Tuesday, announcing that he had used the threat of tariffs to prod pharmaceutical giant Pfizer into cutting U.S. drug prices. But the deal, under which the company would sell some drugs in the U.S. at the same low cost as in other countries, delivered a win for Pfizer, too.

In the two days since the announcement, the company's stock jumped 14 percent as investors realized the new U.S. prices posed little threat to profits. It also allowed Pfizer to avoid im-

Stock rose as investors realized that cost-cutting won't damage profits

port levies for three years. And because the Pfizer agreement is expected to serve as a model for other large drug companies negotiating with the White House, other pharmaceutical firms also saw their stock values rise.

It will take time to determine how much Trump's moves will benefit American patients.

“This represents a win for” Pfizer, Akash Tewari, a Jefferies

analyst, wrote in a note to clients Wednesday. He estimated that offering some new drugs at internationally comparable prices could cost Pfizer up to \$723 million a year. That would amount to just over 1 percent of Pfizer's \$63.6 billion revenue last year.

Pfizer “may have done the rest of the industry a favor by giving a framework for a bespoke solution that we feel would be very tenable” for other big pharmaceutical companies and “would have a de minimis impact on their business going forward,” Tewari wrote.

Details on the pact are scant and terms remain confidential: of the three Pfizer drugs to be

sold at discounts and announced at this week's news conference, none are top sellers.

Many of the cuts Pfizer is promising are aimed at the government Medicaid program, which analysts say account for less than 5 percent of the company's U.S. revenue. And Pfizer's agreement to list discounted drugs for direct purchase on the president's TrumpRx website resembles an initiative already being promoted by the industry. Pfizer also agreed to boost investment in U.S. manufacturing plants.

A White House official characterized the rising Pfizer stock
SEE DRUG PRICES ON A17

Officials advise against firings

A SHUTDOWN PURGE COULD VIOLATE LAW

Agencies quietly warned as Trump weighs action

BY EMILY DAVIES AND HANNAH NATANSON

Senior federal officials have quietly counseled several agencies against firing employees while the government is shut down — as President Donald Trump has suggested he will — warning that the strategy may violate appropriations law, according to two people familiar with the matter who spoke on the condition of anonymity to discuss sensitive internal deliberations.

The officials cautioned that firings — known as RIFs, or reductions in force — could be vulnerable to legal challenges under statutes labor unions cited this week in a lawsuit seeking to block threatened mass layoffs. For example, the Antideficiency Act prohibits the federal government from obligating or expending any money not appropriated by Congress. It also forbids incurring new expenses during a shutdown, when funding has lapsed; some federal government officials have concluded that the prohibition could extend to the kind of severance payments that accompany reductions in force.

Trump and Office of Management and Budget Director Russell Vought, whose office oversees ap-

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Shutdown blame: Most say Trump, GOP are responsible, poll finds. A8

Departures roil U.S. attorney's office in charge of Comey case

BY SALVADOR RIZZO

Lawyers inside the high-profile U.S. attorney's office prosecuting former FBI director James B. Comey are unnerved by what they see as an unprecedented push by President Donald Trump to inject politics into their staffing and charging decisions, according to three people familiar with the matter, a strategy they say could jeopardize national security investigations.

The Justice Department in recent days fired two longtime prosecutors who had risen to leadership positions within the U.S. attorney's office for the Eastern District of Virginia, said the three people, speaking on the condition of anonymity for fear of reprisals. The firings came shortly after Trump installed a new interim U.S. attorney in the district, Lindsey Halligan, who got a grand jury to indict Comey last week despite objections from career prosecutors who deemed the evidence too flimsy.

Maya D. Song, a 12-year veteran of the office who until recently was its second-highest-ranking leader, was demoted to a line prosecutor position last month and then fired in recent days, the people said. Michael P. Ben'Ar, who had a
SEE COMEY ON A2



TONI L. SANDYS/THE WASHINGTON POST

Entrants in an endurance event in Whistler, British Columbia, try to hike a mountain eight times in 36 hours, through daylight and darkness, to match the elevation of Mount Everest.

Over 29,000 feet, every hiker carried something — grief, dreams, even bricks

BY RICK MAESE AND TONI L. SANDYS IN WHISTLER, BRITISH COLUMBIA

At the top of the mountain, the sun had not yet crested the horizon. The hikers and dreamers had set their alarms early, pilgrims shuffling through the predawn chill in search of meaning and purpose. All of them carried something — for one man, bricks; others, grief; for many, fears or goals or both.

“Remember, this is a challenge to test your soul,” one of the coaches said into a microphone.

They stared ahead at the mountain. They'd trained for months and now there was only one way to go.

“We're gonna go in 10—” Up. “5... 4... 3—”

Again and again and again. “2... 1!”

A horn split the silence and cowbells clanged. It was 6 a.m., a crisp 45 degrees. The line snaked ahead, feet inching forward and hiking poles tapping the ground.

“It's time to find your Everest. It starts now. To the top of
SEE HIKE ON A10

Transnational crime unit secretly targeted protesters

Trial reveals federal strategy behind arrests of noncitizen students

BY JOANNA SLATER AND JOHN HUDSON

When Rumeysa Ozturk was grabbed by masked federal agents outside her Massachusetts home in March, the video of the Turkish graduate student being handcuffed and hustled into an unmarked vehicle spread around the world.

A federal trial that ended Tuesday revealed for the first time the story behind the images, showing how the government assigned a special team to target Ozturk and other pro-Palestinian activists, laying the groundwork for their highly unusual arrests.

Ozturk had committed no crime, yet her detention was a priority for the new Trump administration.

U.S. officials used the immigration system in unprecedented ways to covertly research and detain noncitizen students, relying on an investigative arm of the Department of Homeland Security whose work traditionally has focused on crimes such as drug smuggling and human trafficking.

On Tuesday, U.S. District Judge

William Young in Boston ruled that the push to target Ozturk and other students was blatantly unconstitutional. The White House vowed to appeal the decision.

The bench trial — decided by a judge rather than a jury — generated thousands of pages of depositions, court transcripts and filings that provided a detailed picture of the machinery that led to the arrests.

Among the findings: White House Deputy Chief of Staff Stephen Miller, a top ally of President Donald Trump and architect of his mass deportation campaign, spoke with senior officials at the State Department and DHS more than a dozen times in March to discuss student visa revocations.

Homeland Security Investigations, an arm of U.S. Immigration and Customs Enforcement that investigates transnational crime, took the lead. HSI researched the protesters and referred dozens of cases to the State Department, sometimes citing an obscure statute for revoking visas. Then it carried out the arrests.

HSI analysts compiled more than 100 reports on protesters, a first, according to the official who oversaw the process. In at least two cases, including Ozturk's, the HSI supervisory agents involved in the arrests sought additional legal guidance because they had
SEE PROTESTERS ON A2

IN THE NEWS

Synagogue attack Two were killed and several others injured when a man rammed a car and stabbed people attending Yom Kippur services in Manchester, England. A13

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On Sora, a new social media app from OpenAI, every second of content is generated by artificial intelligence. A17

STYLE After his ALS diagnosis, “Grey's Anatomy” and “Euphoria” star Eric Dane took on an advocacy role. B1

SPORTS As the WNBA Finals tip off, a showdown over a collective bargaining agreement is clouding the league's future. B7

THE REGION A local man is on a mission to locate the 150 panda statues that were part of a D.C. public art installation in 2004. B13

WEEKEND At Metro stops and in parks around the area, readers share their book choices — and why and how they made them.

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